



**Rule 2.86—Form 3: Application to Expunge Public Intoxication Court Records under Iowa Code section 123.46**

*If you do not understand how to use this form, or if you are unsure whether you should use this form, talk to an attorney.*

**In the Iowa District Court for** Johnson **County**

*County where you are filing this Application*

**State of Iowa or** \_\_\_\_\_

vs.

Avery Jordan Example

**Defendant**

Case no. EXAMPLE-INT-100001

**Application to Expunge Public  
Intoxication Court Records under Iowa  
Code section 123.46**

If you need assistance to participate in court due to a disability, call the disability coordinator (information at [www.iowacourts.gov/for-the-public/ada](http://www.iowacourts.gov/for-the-public/ada)). Persons who are hearing or speech impaired may call Relay Iowa TTY (1-800-735-2942). **Disability coordinators cannot provide legal advice.**

Defendant respectfully applies to the court for an order expunging the court records in the above-captioned case pursuant to Iowa Code section 123.46(6). In support of this application, Defendant acknowledges that the following statements are true and correct to the best of Defendant's knowledge:

*Read, complete, and check each item if you agree.*

1. ☒ Defendant was convicted for a violation of Iowa Code section 123.46, consumption or intoxication in public places, or of a similar local ordinance on:  
January 15, 2022  
*Month Day Year*
2. ☒ Defendant has had no criminal convictions other than local traffic violations or simple misdemeanor violations under Iowa Code chapter 321 during the two-year period following the conviction.

**Read Before Signing**

Please check each statement below after you have read it.

- ☒ **I understand** that I must provide a copy of this application to the county attorney.
- ☒ **I understand** that the records in a criminal case expunged under this section are confidential and exempt from public access under Iowa Code section 22.7. The record shall not be accessible except by court order.

*Continue to next page*

